

**DISTRICT- Kishoregonj**

In the Supreme Court of Bangladesh  
High Court Division  
(Criminal Miscellaneous Jurisdiction)

**Criminal Misc. Case No.        of 2024**

**In the matter of:**

An application under section 498 of the Code of Criminal Procedure.

**-And-**

**In the matter of:**

Md. Azizul

.... Accused-Petitioners

**-Versus-**

The State

.... Opposite Party

Mr. Mohammad Rezaul Karim Molla, Advocate

.... For the accused-Petitioner

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State

**Present:**

**Mr. Justice S M Kuddus Zaman**

**And**

**Mr. Justice Md. Ali Reza**

The 28<sup>th</sup> January 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

Mr. Mohammad Reazul Karim Mollah, learned Advocate for the petitioner prays for his bail on the ground of long custody since 16.05.2019.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the state raises objection against granting of bail to the petitioner.

It turns out from the record that in this case under Sections 447/323/326/302/307/34 of the Penal Code the accused petitioner gave blows in the chest of victim Chan Miah by Bollom causing his death.

On consideration of above materials on record we hold that the ends of justice will be met if instead of granting bail to the accused-petitioner at this point of time a direction is issued upon the trial Court for expeditious disposal of the case or in default consider the petition for bail.

Accordingly, we are directing the learned Additional Metropolitan Session Judge, 1st Court, Kishoregonj to conclude the trial of the case within 6(six) months from the date of receipt of this order or in default consider the petition for bail of the accused-petitioner, if any, sympathetically and in accordance with law.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

Md. Masudur Rahman  
Bench Officer